

that it has no responsive documents to produce.

Conclusion:

The Plaintiff's motions to compel further responses to interrogatories and document production is denied except for the few items specified above, for which Defendant should respond within 30 days of service of notice of entry of this order. In addition to producing Plaintiff's complete personnel file, pay records, and reimbursements forms, Defendant searched almost 100 terms within its files and emails in order to capture all responsive documents in response to Plaintiff's requests. The court finds Defendant's efforts to respond to Plaintiff's discovery requests have been diligent, thorough and comprehensive.

Plaintiff improperly moved to compel answers to interrogatories that it failed to meet and confer about with Defendant. Defendant has acted with substantial justification and produced voluminous amounts of responsive and Bates stamped, identified documents. In addition, Defendant demonstrated good faith even providing Plaintiff with significant information pre-litigation. Plaintiff's request for sanctions is denied.

16. 9:01 AM CASE NUMBER: C24-02962
CASE NAME: FRANK GALLAGHER VS. SIMON DE GIULI BOTTA
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS**
FILED BY: GALLAGHER, FRANK
TENTATIVE RULING:

See Line 15.

17. 9:01 AM CASE NUMBER: C23-01080
CASE NAME: DANIELLE DEMOTTO VS. WALNUT CREEK SCHOOL DISTRICT
***HEARING ON MOTION FOR DISCOVERY SANCTIONS FOR FAILURE TO COMPLY WITH THE COURT'S DISCOVERY ORDER**
FILED BY: WALNUT CREEK SCHOOL DISTRICT
TENTATIVE RULING:

On November 5, 2025, Defendant Walnut Creek School District filed this motion for an order compelling Plaintiff DANIELLE Demotto to provide responses to written discovery without objections, pursuant to CCP §2030.290 and 2031.300.

Defendant seeks responses to written discovery: Form Interrogatories (General and Employment), Set One, Request for Production of Documents, Set One, Special Interrogatories, Set One, and Request for Admissions, Set One. Defendant further moves for sanctions in the amount of \$6,318. In addition to monetary sanctions, Defendant seeks contempt sanctions.

This motion was set for hearing February 20, 2026.

When the complaint in this matter was filed on May 9, 2023, the plaintiff requested and was granted a waiver of court fees.

On June 2, 2025, Defendant filed a cross complaint against the Plaintiff. Plaintiff did not answer or otherwise respond to the cross complaint and Plaintiff's default on the Cross-complaint was entered by the clerk on July 15, 2025.

On September 5, 2025, the court granted Defendant's motion to compel Plaintiff to provide responses to requests for first set of written discovery. The court ordered Plaintiff to serve "code-compliant, objection free, verified responses along with responsive documents" in 60 days. Sanctions were denied. Plaintiff has not complied with the court's September 5, 2025 order.

Defendant filed the instant motion to compel on November 5, 2025, and hearing was set for February 20, 2026. No opposition was filed.

On December 11, 2025, Defendant filed a motion to compel Plaintiff's attendance at deposition. Hearing was set for March 27, 2026.

On February 6, 2026, the court ordered the Complaint dismissed without prejudice for failures to appear at court proceedings, including failure to respond to an order to show cause why the Complaint should not be dismissed.

The court **denies** the Defendant's motion to compel as moot. After the Defendant filed the instant motion, Plaintiff's original complaint was dismissed. Plaintiff had already defaulted on the Cross-Complaint. Therefore no further discovery is warranted. Sanctions are denied.

For the same reason, the court also orders Defendant's Motion to Compel Plaintiff's Attendance at Deposition, currently set for hearing on March 27, 2026 at 9:00 a.m. in Department to be **dropped from calendar**.

The court will maintain the date of April 21, 2026 at 8:30 a.m. for the Order to Show Cause issued by Judge Treat as to Attorney James Marzan to appear and show cause, if cause there be why the Cross-Complaint against Cross-Defendant Danielle DeMotto should not be dismissed for failure to prosecute.

Law & Motion
Add on

18. 9:00 AM CASE NUMBER: C24-00152
CASE NAME: DEANDRANAE JONES VS. DAVE & BUSTER'S OF CALIFORNIA, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES**
FILED BY:
TENTATIVE RULING:

Before the Court is the Motion of Defendant Dave & Buster's of California, Inc. ("Defendant" or "Dave